

25NWCV00371 25NWCV00371

County: los-angeles

Division: Civil Law and Motion

Department: L

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Case Number: 25NWCV00371 Hearing Date: June 24, 2026 Dept: L

Defendant Robert Brian

Kottman, Jr.'s Application for Determination of Good Faith Settlement is GRANTED.

Defendant/Cross-Complainant

City of Long Beach's Cross-Complaint is stricken.

Defendant to give notice.

Background

This is an action for motor vehicle negligence. On January 30, 2025, Plaintiff Evvette Zavala ("Plaintiff") filed this action against Defendants Darrin Kenneth Strickroth, Robert Brian Kottman, Jr., City of Long Beach, County of Los Angeles and State of California, and Does 1 to 100. The Complaint alleges the following causes of action: 1) Negligence, 2) Negligence Per Se, and 3) Statutory Liability.

On June 20, 2025, Defendant Robert Brian Kottman, Jr. (hereinafter, "Kottman") filed an answer.

On June 30, 2025, dismissal was entered without prejudice as to Defendant County of Los Angeles.

On July 1, 2025, Kottman filed an Application for Determination of Good Faith Settlement pursuant to Code of Civil Procedures section 877.6, subdivision (A)(2) (hereinafter, "Application").

On July 16, 2025, Defendants City of Long Beach and Darrin Kenneth Strickroth filed an answer.

On July 23, 2025, Defendant City of Long Beach (hereinafter, "Long Beach") filed a Cross-Complaint against Kottman and Roes 1 to 50, alleging causes of action for 1) Total Equitable Indemnity, 2) Comparative Indemnity, 3) Declaratory Relief, and 4) Apportionment of Fault.

On August 4, 2025, dismissal without prejudice was entered as to Defendant State of California.

On August 21, 2025, the Court granted the Application filed on July 1, 2025, finding that no Notice of Motion to contest the good faith of the settlement was served or filed within the time prescribed by Code of Civil Procedures section 877.6, subdivision (A)(2).

On April 23, 2026, the Court set a noticed hearing date, today's date, on the Application to allow Defendant City of Long Beach the opportunity to formally oppose it. (4/23/26 Minute Order.)

On June 10, 2026, Defendants City of Long Beach and Darrin Kenneth Strickroth (collectively, "Defendants") filed a joint opposition to the Application. On June 11, 2026, Kottman filed a reply.

Legal Standard

A judicial determination of good faith "bar[s] any other joint tortfeasor. . .from any further claims against the settling tortfeasor. . .for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc. § 877.6, subd. (c).)

In evaluating whether a settlement has been made in good faith, courts consider the following factors, as set forth by the California Supreme Court in the landmark case *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488 ("Tech-Bilt"): 1) "a rough approximation of plaintiffs' total recovery"; 2) "the settlor's proportionate

liability”; 3) “the amount paid in settlement”; 4) “the allocation of the settlement proceeds among plaintiffs”; 5) “a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial”; 6) the settling party’s “financial conditions and insurance policy limits”; 7) any evidence of “collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.” (Id. at p. 499.)

The “good faith” concept in Code of Civil Procedure section 877.6 is a flexible principle imposing on reviewing courts the obligation to guard against the numerous ways in which the interests of nonsettling defendants may be unfairly prejudiced. (Rankin v. Curtis (1986) 183 Cal. App. 3d 939, 945.) Accordingly, under Tech-Bilt, the party asserting the lack of “good faith” may meet this burden by demonstrating that the settlement is so far “out of the ballpark” as to be inconsistent with the equitable objectives of the statute. (Tech-Bilt, supra, 38 Cal.3d at 499-500.) Such a demonstration would establish that the proposed settlement was not a “settlement made in good faith” within the terms of section 877.6. (Ibid.)

“A motion or application for determination of good faith settlement may include a request to dismiss a pleading or a portion of a pleading. The notice of motion or application for determination of good faith settlement must list each party and pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed.” (Cal. Rules of Court, Rule 3.1382.)

Discussion

Kottman now applies for a determination of good faith settlement with Plaintiff and requests that all pending or existing cross-complaints against Kottman be dismissed. Kottman’s insurer, Integon Preferred Insurance Company (National General), has tendered the available policy-limits of \$15,000.00 to resolve all claims asserted by Plaintiff against Kottman in this action. On June 28, 2025, Plaintiff executed a Release of All Claims (“Release”) resolving all allegations asserted against Kottman in exchange for the tender. (Kerr Decl., ¶ 3, Exh. A.)

Kottman argues that, based on the circumstances of the case, the settlement should be determined to be in good faith. According to the allegations, Defendant Darrin Kenneth Strickroth rear-ended Plaintiff’s vehicle, after which Kottman, in a separate vehicle,

rear-ended Strickroth, purportedly causing a secondary impact to Plaintiff. Thus, Kottman argues that the initial collision caused by Defendant Strickroth was the primary cause of Plaintiff's damages. Further, the amount paid in settlement reflects all of Kottman's available insurance coverage. Kottman has no other asserts beyond the policy. Further, the settlement was the result of adversarial claims handling, and there is no evidence of collusion, fraud, or any tortious conduct aimed at undermining the rights of co-defendants.

In opposition, Defendants assert that Kottman, not Defendant Darrin Kenneth Strickroth (then-employee of Defendant City of Long Beach), was the primary cause of Plaintiff's injuries. Defendant Strickroth declares that Kottman hit him, and as a result, his vehicle hit Plaintiff's vehicle. (Strickroth Decl., ¶ 2-3.) Defendants argue that Kottman's share of liability outweighs Defendants' liability, and thus, the \$15,000.00 settlement amount is not in good faith. Specifically, Kottman's settlement is only 3.75 percent of Plaintiff's damages demand. Such amount does not reflect Kottman's proportional share of liability compared to the other Defendants.

In reply, Kottman asserts that, the mere possibility that Defendants may be exposed to a larger share of the future judgment if this Application is granted is not grounds to deny the Application. There is no evidence of bad faith. The Court must only determine whether the settlement falls within a reasonable range given circumstances at the time of settlement. Here, Kottman's settlement tender represents the full amount of his available policy limits, and Plaintiff accepted. A full policy limits settlement amount is inherently reasonable for purposes of determining good faith settlement.

The Court determines that the settlement between Kottman and Plaintiff was made in good faith. The Court finds that "bad faith is not established merely by a showing that a settling defendant with limited ability to satisfy a judgment will pay less than his or her theoretical proportionate share: '[...] And even where the claimant's damages are obviously great, and the liability therefor certain, a disproportionately low settlement figure is often reasonable in the case of a relatively insolvent, and uninsured, or underinsured, joint tortfeasor.'" (Schmid v. Superior Court ("Schmid") 1988) 205 Cal.App.3d 1244, 1248, citing Tech-Bilt, supra, 38 Cal.3d at p. 499, emphasis in the original.) In Schmid, the settling defendant's insurer offered the policy limits in

exchange for settlement with the plaintiff, and the defendant had no other assets. (Id. at pp. 1247-1248.) The Court of Appeal found that it was error for the trial court to deny the application for good faith settlement, reasoning that there was no good reason to allow the opposing co-defendant county's equitable indemnity claims to go forward against the settling defendant where she had no assets to pay a judgment in excess of her insurance policy limit. (Id. at pp. 1248-1249.)

Here, Koffman tendered a settlement amount representing the full amount of his insurance policy limits. In line with Schmid, the Court finds that Defendants' equitable indemnity claims have no practical value, where Koffman has no additional assets to pay a future judgment in excess of the policy limit.

Thus, based on Tech-Bilt and Schmid, the Court finds that the settlement between Plaintiff and Koffman was made in good faith. Accordingly, Koffman's Application for Determination of Good Faith Settlement is granted.

Defendant/Cross-Complainant City of Long Beach's Cross-Complaint is thus stricken pursuant to California Rules of Court, Rule 3.1382.